

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

May 26, 2009

Due to the Memorial Day holiday, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Pierson. The pledge of allegiance, led by members of the Mayor's Youth Council, was recited.

Also present: Carol Intlekofer, City Clerk; Lois Huff, Deputy City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

Keith Reichert and Buck Moskalski, representatives of Greeley's Independence Stampede Committee, submitted and read a proclamation noting the Stampede's 87th anniversary of its annual celebration to be held June 25 through July 5, 2009, proclaiming Sunday, June 28th as Cheyenne Day, and inviting the Cheyenne community to attend the event in Greeley, CO.

EXPRESSION OF APPRECIATION TO MAYOR'S YOUTH COUNCIL AND STATE OF THE YOUTH REPORT. Mayor Kaysen and Jan Spires, Mayor's Youth Council coordinator, commended members of the 2008-2009 Mayor's Youth Council and presented each with a certificate and gift of appreciation. Youth Council members recognized were: Reed Barrett, Beth Christensen, Karolyn Hopfensperger, Kelsey James, Tyler Loyd, Ted Lynch, Katie Poffenbarger, Tom Quinlivan, Ryan Ragaglia, Tanya Salih and Ashley Woods. Ryan Ragaglia, Youth Council Chair, provided a State of the Youth report and described various projects the Youth Council supported during the past school year and commented on members' positive interactions and learning experiences through involvement with local government issues. He expressed appreciation to the governing body and staff members who provided assistance to the group, as well as co-Youth Council members.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON May 11, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON MAY 18, 2009. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Collins declared a conflict of interest (business interest) and indicated he would not participate in the discussion and vote. Upon inquiry regarding a voucher payable to Holland & Hart (\$6,000), Mayor Kaysen advised services provided from the firm involved a personnel matter. Motion

carried. Voting “yes” – all members of the governing body present with the exception of Mr. Collins who did not vote.

“AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO BUSINESS LICENSE AND PERMIT FEES.” John Fafoutakis questioned the amount of fee increases and whether these were for annual licenses. Carol Intlekofer, City Clerk, responded that the majority of license fees proposed for adjustment were annual licenses with a suggested increase of \$5.00, and that some involve temporary permits. She explained some new fee areas will be created and fee adjustments proposed vary with the type of license or permit. Upon inquiry, Lois Huff, Deputy City Treasurer, provided further information on estimated revenue (approximately \$81,500.00) to be generated by each of the fee areas involving City Clerk, Cemetery, Aquatics and Parking Divisions as set out in this ordinance and the next four ordinances, if approved, on the agenda. Reporting for Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO FEES FOR FALSE ALARMS; PUBLIC DISPLAY FIREWORKS PERMITS; FLAMMABLE AND COMBUSTIBLE LIQUIDS AND FUEL DISPENSING BUSINESS LICENSES; PORTABLE FIRE EXTINGUISHERS AND HOSE STATION EQUIPMENT BUSINESS LICENSES; FOOD AND FOOD SERVICE ESTABLISHMENTS BUSINESS LICENSES AND PERMITS, AND NOISE CONTROL PERMITS.” Mr. Valdez moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING SECTION 9.24.110 OF CHAPTER 9.24, WEAPONS, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO THE FEE FOR A FIREARM DEALER’S BUSINESS.” John Fafoutakis questioned the amount of the current license fee and spoke in opposition to municipal government regulating sales of firearms, which are licensed at the federal level. Upon inquiry, Carol Intlekofer, City Clerk, advised the current license fee is \$85 annually and that Wyoming Statute, Title 15 provides for the City to license and regulate businesses. City Attorney Dan White confirmed Wyoming Statute §15-1-103 provides authority for municipalities to license, tax and regulate any business whatsoever conducted within the city limits. Bob Fecht, Cheyenne Police Chief, clarified that federal regulation is through Alcohol, Tobacco and Firearms rules, which states that applicants for a federal license to sell firearms must go through an approval process through the Police Dept. Duncan Philp, Carpenter, Wyoming, Director of Wyoming Tyranny Response Team, spoke in opposition to a firearm dealer’s business license being required at the local level in addition to a federal license. Mayor Kaysen clarified the ordinances involving proposed fee increases are to help offset licensing/permitting administrative costs, and that some fees have not been adjusted since 1997 or 2006. Mr. Valdez moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING SECTIONS OF CHAPTER 10.56, HANDICAPPED PARKING SPACES; CHAPTER 10.64, LOADING AND UNLOADING, AND CHAPTER 10.68, CRITICAL TRAFFIC AND PARKING AREAS, OF TITLE 10, VEHICLES AND TRAFFIC, OF

THE CODE OF THE CITY OF CHEYENNE PERTAINING TO PERMIT FEES FOR HANDICAPPED PARKING SPACES, CURB LOADING AND UNLOADING ZONES, AND CRITICAL TRAFFIC AND PARKING AREA RESIDENTIAL PARKING PERMIT FEES.” Mr. Valdez advised there was no recommendation from Finance Committee on the item. There being no motion to approve offered, the ordinance was indirectly rejected on 2nd reading.

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 12.20, CEMETERIES, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO CEMETERY FEES.” Mr. Valdez moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, TRACTS 249, 250, 251, 252, SUNNYSIDE ADDITION 6TH FILING, EXCEPT NORTH 240 FEET THEREOF, INCLUDING PORTIONS OF CHARLES STREET AND ARTHUR STREET.” Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Ms. Broyles declared a conflict of interest (family relationship) and vacated Council Chambers. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Broyles returned to Council Chambers.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF SECTIONS 30, 31, AND 32, T.14N., R.65W., AND A PORTION OF SECTION 36, T. 14N., R 66W. OF THE 6TH P.M. GENERALLY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED AS FOLLOWS: CAMPSTOOL ROAD COMMENCING AT COMMERCE CIRCLE, THENCE EASTERLY AND SOUTHERLY TO INTERSTATE 80, CHRISTENSEN ROAD COMMENCING AT CAMPSTOOL ROAD, THENCE NORTHERLY TO THE UNION PACIFIC RAILROAD, AND VENTURE DRIVE COMMENCING AT CAMPSTOOL ROAD, THENCE EASTERLY TO THE INTERSTATE 80 SERVICE ROAD, LARAMIE COUNTY, WYOMING.” Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING SECTION 13, PARKING, AS PREVIOUSLY AMENDED BY ORDINANCE #3799 FOR STOREY ACRES, SECOND FILING, REFINEMENT B; PREVIOUSLY KNOWN AS A PORTION OF STOREY ACRES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BOULEVARD, BETWEEN SUNSET DRIVE AND TOWNSEND PLACE).” Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY CHANGING THE DEFINITION OF OFF-PREMISE SIGN IN SECTION 17.04.040, DEFINITIONS, SIGNAGE, AND BY ADDING ADDITIONAL LANGUAGE TO SECTION 17.128.090 G., OFF-PREMISE SIGNS.” Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Mr. Brown moved to postpone for two weeks (to June 8, 2009), seconded by Mr. Collins. It was clarified postponement was pursuant to request by the applicant to allow additional time to obtain information. Matt Obrecht, attorney

with Speight, McCue and Crank law firm, representing the applicant, NextMedia, advised the postponement will allow time to determine the number of billboards NextMedia has within Cheyenne, and for continuing discussions on possible law enforcement related types of public messages on digital billboards. Concerns were raised relative to billboard signs and an ordinance change in 2006, and a lawsuit that had been filed. Mr. Obrecht advised he was unable to discuss specifics of the lawsuit and, upon inquiry, Dan White, City Attorney, advised a proposed settlement agreement is a topic he will be briefing governing body members on in executive session later in the meeting. He clarified the proposed ordinance amendment would address the 2006 change pertaining to billboard signs. Further discussion followed on the motion to postpone. Upon query by Mr. Valdez concerning a potential conflict of interest as he rents a billboard sign located within the County, Mr. White advised Mr. Valdez that he may not legally and technically have a conflict, and that often it is a personal decision a council member must make as to whether to declare a conflict. Motion to postpone carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING CHAPTERS 17.04 INTRODUCTORY PROVISIONS AND DEFINITIONS AND 17.128 SIGNS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002.” Mr. Brown moved to approve on second reading, seconded by Ms. Broyles. Mr. Brown moved to postpone for two weeks (to June 8, 2009), seconded by Ms. Broyles. Motion to postpone carried. Voting “yes” - all members of the governing body present.

“AN ORDINANCE AMENDING THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE.” John Fafoutakis and Eric Miller, spoke in opposition to fee increases. Topics presented included effect fee increases have on citizens, including county residents and low income individuals; current state of the economy; local spending levels, and fiscal restraint and responsibility. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Comments followed on increasing fees on a gradual basis in smaller amounts vs. large increases on a non-regular basis, and sanitation fees relative to city-wide budget revenue. Motion carried. Voting “yes” - all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES, AND PENALTIES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Comment was made on proposed adjustment to insufficient funds check charges and whether the amount that could be assessed was controlled by state statute. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Eric Miller spoke in opposition to fee increases due to the current state of the economy, and effect on South Cheyenne Water and Sewer District users. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEPTIC WASTE DUMP RATES AND LIQUID COMMERCIAL WASTE RATES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED TAP FEES, SYSTEM DEVELOPMENT FEES, PUMP STATION FEES, AND OTHER RELATED FEES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEWER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mark Shubert, Eric Miller and John Fafoutakis spoke in opposition to raising fees. Topics presented included disclosure of cost cutting and expenditure saving measures. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Comments followed on clarification that revenue from the fee increases do not support the general fund but are BOPU revenues to assist with infrastructure/expenses. Further comments were made on fiscal responsibility, justification for fees and services provided, and funding source of the \$1 million dollar annual bond payment for Stage II pipeline. During discussion and upon inquiry, Tim Wilson, BOPU Director, clarified rate increases are essential for BOPU to provide and maintain water and sewer services. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE APPROPRIATING MONIES FOR THE CITY OF CHEYENNE, WY FOR THE VARIOUS PURPOSES IN CONDUCTING THE MUNICIPAL GOVERNMENT OF SAID CITY AND FIXING THE AMOUNT OF GENERAL AND SPECIAL TAXES AS PART OF THE REVENUE REQUIRED TO MEET THE SAID APPROPRIATION, ALL FOR THE FISCAL YEAR BEGINNING JULY 1, 2009, AND ENDING JUNE 30, 2010” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING ORDINANCE NO. 3814 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE” -- referred to Finance Committee (sponsor - Mr. Spiker).

“AN ORDINANCE AMENDING ORDINANCE NO. 3815 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT” -- referred to Finance Committee (sponsor - Mr. Spiker).

“AN ORDINANCE AMENDING CHAPTER 2.36, BUILDING DEPARTMENT, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHEYENNE CITY CODE, PERTAINING TO THE AUTHORITY OF THE CITY’S CHIEF BUILDING OFFICIAL AND

BUILDING DEPARTMENT STAFF, AND PROVIDING FOR VIOLATION PENALTIES” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING CHAPTER 5.44, CONTRACTORS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF CHEYENNE CITY CODE, PERTAINING TO THE MEMBERSHIP AND MEETINGS OF THE CONTRACTOR LICENSING BOARD” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE, RELATING TO GENERAL PROVISIONS, AND ADOPTION OF THE INTERNATIONAL BUILDING CODE AND OTHER RELATED CODES, 2006 EDITION, AND THE NATIONAL ELECTRICAL CODE, 2008 EDITION” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING CHAPTER 8.12, OF TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE, RELATING TO THE ADOPTION OF THE INTERNATIONAL FIRE CODE, 2006 EDITION” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CLASSIC SUBDIVISION, A REPLAT OF LOT 1, BLOCK 1, GRIFFIN ADDITION, AND A PORTION OF HAPPY JACK ROAD AND A PORTION OF WESTLAND ROAD, SITUATED IN A PORTION OF SECTION 1, T.13N., R.67W., AND IN A PORTION OF SECTION 36, T.14N., R.67W., 6TH P.M., CHEYENNE, WYOMING (LOCATED WEST OF MISSILE DRIVE, BETWEEN OLD HAPPY JACK AND WESTLAND ROADS).” Motion (per Consent Agenda) carried. (#5134)

“A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE A LETTER OF INTENT WITH FIELD HOUSE DEVELOPMENT GROUP, LLC, FOR PURPOSES OF THE DEVELOPMENT OF AN INDOOR SPORTS COMPLEX IN THE CITY OF CHEYENNE.” Offering public comments were John Fafoutakis, Mark Shubert and Eric Miller, who spoke in opposition to the resolution and urged caution in proceeding forward with a field house development. Topics presented included: Field house facility vs. recreation center and public sentiment expressed through a ballot election question on the latter; future costs and concerns, including use of city-owned property; field house project process proposed by the developer; utilization of current facilities and rental revenues; project financing; current economic conditions, and prioritizing of City projects. Dave Zyzda, Director of Leasing, Lake Barrington (IL) Field House, Field House Development Group representative, explained the Group’s letter of intent will provide them the opportunity to visit with local sports teams/groups to determine whether there is support through commitment of facility rental use/fees to consider development of an indoor sports complex. He stated if there is enough interest expressed then the Group may proceed with discussions with the City with regard to a site involving donated land and land lease arrangements. He provided information on potential formation of a non-profit charitable organization; facility funding mechanism and debt payments; facility management time frame by the Group; property

(ground) lease, and eventual ownership of the facility by the City. Dirk Miller, Cheyenne Soccer Association Board of Directors member, spoke in support of the resolution and clarified there currently are not enough places in Cheyenne to rent for player use, noting that several local teams rent facilities in Colorado for use. Comments followed on utilization of City soccer fields and seasonal use only of City-owned outdoor soccer and baseball fields. Wally Erickson, past president of Cheyenne Soccer Club and parent/coach for soccer teams, spoke in support of the resolution to allow the Group an opportunity to visit with sports teams to determine the demand and feasibility of pursuing a facility. He advised several facilities of this type are located in the Ft. Collins, CO area, where competitive soccer programs lease the facilities to enable year round play (i.e. indoor turf), explained team needs and volumes and the unavailability of facilities locally through the community college and schools affecting player use. Major Dorr spoke in support of the letter of intent and giving youth a chance to compete and prove themselves. During public comments, points of order were raised with Mayor Kaysen requesting speakers to remain on topic with their comments, maintain respectfulness, and to offer comments, not enter into debate, with other speakers. Upon inquiry, Mayor Kaysen clarified the letter of intent authorizes the Group to visit with sports teams and if, based on their findings, the Group determines a facility is feasible for the community, then discussions will be held involving a definitive development agreement. He stated any final agreement proposed will come before the governing body for review and approval. Mr. Valdez reported there was no recommendation from Finance Committee on the item. Mr. Collins moved to adopt, seconded by Dr. Rinne. Comments followed and included the following topics: Shortage of space for sports leagues to practice; providing athletes with a facility for year round use to build and enhance athletic skills and maintaining a competitive training environment for players; aspects of partnering with the private sector to build a community field house; local community college and school policies affecting facility rental availability; e-mails received by Council members in support of the letter of intent; possible land lease with the City for a nominal amount, and non-commitment on the part of the City at this time. During comments and inquiries, Mr. Zyzda provided information concerning potential ground lease/sales options and financial bonding, and confirmed the letter of intent involves no obligation by the City. Upon inquiry regarding potential parcels of City land that could be utilized for a facility, Parks and Recreation Director Rick Parish stated parcels of land would need to be reviewed for requirements, options and availability if it is decided the feasibility study warrants moving forward. Concerns were expressed with budgetary issues, other ongoing city projects, and contact with citizens who have expressed a desire for a recreation center in the future instead of a field house. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Broyles voting “no”. (#5135)

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:40 p.m.

[CA] “A RESOLUTION TO AMEND THE CITY OF CHEYENNE’S ANNUAL ACTION PLAN FOR FISCAL YEAR 2008-2009 TO INCORPORATE THE AMERICAN RECOVERY AND REINVESTMENT ACT OF 2009 FUNDING.” Motion (per Consent Agenda) carried. (#5136)

[CA] “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING TO LEND FUNDS TO THE PARKS & RECREATION DEPARTMENT TO COMPLETE THE CONSTRUCTION OF THE YOUTH ACTIVITY AND COMMUNITY CENTER IN THE

DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK” -- referred to Finance Committee (due to postponement from April 27, 2009).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT.§15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF A TRACT OF LAND SITUATED IN A PORTION OF NW¼ OF THE SW¼ OF SECTION 20, T. 14N., R. 66W., OF THE 6TH P.M., LARAMIE COUNTY, WY (GENERALLY DESCRIBED AS FOLLOWS: A TRACT OF LAND LOCATED EAST OF POWDERHOUSE ROAD, NORTH OF AND ADJACENT TO LIFE CARE CENTER)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION APPROVING OUTSIDE USER’S REUSE WATER SERVICE AGREEMENT, WITH THE CITY OF CHEYENNE PARKS & RECREATION DEPARTMENT” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “A RESOLUTION AMENDING RESOLUTION NO. 4798, PERTAINING TO ADOPTION OF A REVISED CHEYENNE-LARAMIE COUNTY BOARD OF HEALTH FEE SCHEDULE FOR INSPECTION SERVICES” -- referred to Finance Committee (sponsor - Mr. Valdez.

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR TRANSPORTATION ENHANCEMENT ACTIVITIES - LOCAL (TEAL) FUNDS FOR CONTINUATION OF THE GREENWAY SYSTEM; SPECIFICALLY, THE WALTERSCHEID PEDESTRIAN UNDERPASS PROJECT (1% Specific Purpose Sales & Use Tax)” -- referred to Finance Committee (sponsor - Ms. Ash).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat for Life Care Center, 2nd Filing, a portion of the NW¼ of the SW¼ of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located east of and adjacent to Powderhouse Road, north of the existing Life Care Centers of America). Kelly Hefner, Benchmark Engineers, agent representing the developers of Life Care Center, advised he was present to provide information or respond to questions concerning the project. Mr. Brown moved to acknowledge receipt with staff recommendations #1 and 2, seconded by Ms. Case. Motion carried. Voting “yes” – all members of the governing body present.

LEASES/CONTRACTS/LEGAL:

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the use of the parking lot leased from the United States Department of the Air Force during the 2009 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5384)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One, to lease school buses from Laramie County School District Number One to provide transportation services during the 2009 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5385)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., to authorize the

use of buses leased by Laramie County School District Number One to provide transportation services during the 2009 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5386)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontiers Days, Inc., for the use of city-owned lands for parking, camping and other activities associated with the 2009 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5387)

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County, Sheriff's Department, for Courthouse Security Services. Motion (per Consent Agenda) carried. (#5388)

Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and State of Wyoming, Department of Family Services, Protective Services Division. Mr. Valdez moved to approve, seconded by Ms. Broyles. Ms. Ash declared a conflict of interest (Wyoming Children's Trust Fund board member) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5389)

[CA] Professional Services Contract between the City of Cheyenne, Metropolitan Planning Organization and Alta Planning + Design for the Laramie County School District Number One Safe Routes to School Plan and Cheyenne Metropolitan Area Pedestrian Plan. Motion (per Consent Agenda) carried (amount not to exceed \$66,085.00). (#5390)

Professional Services Agreement between the City of Cheyenne, Civic Center, and Trizart Alliance, Inc., for Professional Services, Design Engineering and Bid Specification Preparation for Automated Stage Rigging Installation (SLIB Funding). Mr. Valdez moved to approve in an amount not to exceed \$35,000.00, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body present. (#5391)

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide cooperative transit services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Transit Division, and NextMedia Outdoor, Inc., for the purchase of advertising space on Cheyenne Transit Buses -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and County of Laramie, for the purpose of creating the Laramie County Community Juvenile Services Joint Powers Board -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, for a parcel of land to install an air monitoring system at North Cheyenne Community Park -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Cheyenne Regional Airport Board, for law enforcement services -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and The Hartford, for life and supplemental

insurance coverage for full-time city employees -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Delta Dental of WY, for dental coverage for full-time city employees -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and J-R Engineering, for the design of the 2009 Cheyenne Transit Program Bus Stop Upgrades Project -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 7 to Contract No. 4363 between the City of Cheyenne and TriHydro Corporation to provide for environmental monitoring for the remainder of 2009 and revise the cost of completing three additional wells at the Happy Jack. Motion (per Consent Agenda) carried (amount not to exceed \$107,853.15). (#4363)

[CA] Contract Modification No. 1 to Contract No. 5321 between the City of Cheyenne and RECCO Inc., d/b/a Five-R-Co., to allow for Phase II Construction of the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park to commence -- referred to Finance Committee (due to postponement from April 27, 2009).

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-12-09 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River for the FY 2009 Concrete, Milling and Utility Adjustment for the Street and Alley Department (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$133,430.20). (#5392)

[CA] Consideration of Bid #M-17-09 for a contract between the City of Cheyenne, Public Works, and S&S Builders, LLC, for the Construction & Demolition Recycle Building at the Landfill (SLIB Funding). Motion (per Consent Agenda) carried (amount not to exceed \$1,266,996.00). (#5393)

Consideration of Bid #M-23-09 for a contract between the City of Cheyenne, Facilities Maintenance, and Ameri-Tech HVAC Services, Inc. for Mechanical and HVAC System Maintenance for 14 City Buildings. Mr. Brown declared a conflict of interest (business interest) and vacated Council Chambers. Mark Shubert questioned a 20 minute service response time referenced in a recent newspaper article, and commented on the lack of competitive bids (1 bid received), suggesting the City bid process should be reviewed. Mike Wright, Director of Facilities Maintenance, clarified the bid document provides for a 2 hour service response time, not 20 minutes. Doug Quinn, Vice-President, Ameri-Tech HVAC Services, Inc., also confirmed the 2 hour service response time, and stated his belief that the company had submitted a good, competitive bid. Mr. Valdez moved to approve the bid submitted by Ameri-Tech HVAC Services, Inc. in an amount not to exceed \$243,500.00, seconded by Mr. Spiker. Comments followed in support of a competitive bidding process, concern with no other bids being submitted, and whether the service response time may have affected lack of other bids being received. Upon inquiry, Mr. Wright clarified the bid submitted reflects an increase of 10% for the next two years, which includes an additional facility (Taco John's Events Center). Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the

vote, Mr. Brown returned to Council Chambers. (#5394)

APPOINTMENTS:

Re-Appointment of Jeannine Stallings to the Public Transit Advisory Board; David Evans to the Board of Public Utilities; Janet Cowley to the Cheyenne-Laramie County Economic Development Joint Powers Board, and Debbie Disney-Caldwell to the Tourism Promotion Joint Powers Board. Mr. Spiker moved to approve, seconded by Dr. Rinne. Mayor Kaysen advised as these were mayoral appointments, pursuant to Wyoming Statute he would not be voting. Motion carried. Voting “yes” – all members of the governing body present.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held Monday, June 8, 2009 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, WY to receive public comments on a proposed trade of real property owned by the City of Cheyenne to Cheyenne Hotel Investors, LLC, and Cheyenne Hotel Investors II, LLC, described as a parcel of land situated in a portion of the Replat of Westland Subdivision, said subdivision being further described as a portion of Lot 1 of Block One, a portion of Lot 1 of Block Two and a portion of vacated County Road 51, consisting of approximately 51,423 square feet (estimated appraised value \$97,703.70), for real property owned by Cheyenne Hotel Investors, LLC, and Cheyenne Hotel Investors II, LLC, to the City of Cheyenne, described as a parcel of land situated in a portion of Lot 4, Block Two, Griffin Addition; and an adjoining portion of Government Lot 5 of Section 36, T. 14 N., R. 67 W., 6th P.M., Laramie County, lying generally south and west of said Lot 4, all consisting of approximately 75,682 square feet (estimated appraised value \$75,901.45), plus the sum of \$21,802.25 which represents the difference between the value of the land to be exchanged between the parties, said funds to be used for design and construction of amenities for Pat Griffin Park, (generally located west of Westland Road and east of I-25).

Announcement was made of a Public Hearing to be held Monday, June 8, 2009 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, WY for a bar and grill liquor license application filed with the City Clerk’s Office for Suite 1901 CLLC d/b/a Suite 1901, 1901 Central Avenue, Cheyenne, WY.

Announcement was made of a Public Hearing to be held Monday, June 8, 2009 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, WY for a winery permit application filed with the City Clerk’s Office for Suite 1901 CLLC d/b/a The Winery at 1901, 1901 Central Avenue, Cheyenne, WY.

Announcement was made of Re-Appointment of Jo Butler, Jay Guerin, Robert Kanard, Dick Krahenbuhl, Bebe Molway, Bradley Oberg, Carol Matteson Pascal, Liberty Blain, Doyle Travis, Marty Griffith, and Tom DeHoff to the Greenway Advisory Committee for fiscal year 2010, to be confirmed June 8, 2009.

Announcement was made of Appointment of Charles Livermont to the Mayor’s Council for People with Disabilities, and Barbara Rogers to the Board of Public Utilities, to be confirmed June 8, 2009.

OTHER CITY BUSINESS:

John Fafoutakis commented on Council members declaring conflicts of interest relative to perceptions of impropriety, and suggested implementing an ordinance outlining what is proper and improper conflicts of interest.

Eric Miller discussed adoption of the resolution earlier in the meeting pertaining to the letter of intent with Field House Development Group and, if a facility is built, responsibilities by the parties if financial commitments could not be met. Pursuant to Mr. Miller's comment on participation at Council meetings by county residents, Mayor Kaysen confirmed members of the public are welcome to participate at City Council meetings.

Mark Shubert commented on the city deficit, employee salary expenses and public vs. private employment benefits. Mayor Kaysen advised comparing salaries and employee benefits packages between public and private sectors was not "apples to apples", and expressed his appreciation of City employees.

Mr. Collins, referencing a memorandum issued from the Metropolitan Planning Office, and indicating he had voted with the prevailing side, moved to reconsider the Cooperative Agreement with the Wyoming Department of Transportation and the City for the West Lincolnway enhancement project as approved at the May 11, 2009 City Council meeting, seconded by Mr. Spiker. City Clerk Carol Intlekofer read the entitlement of the item proposed for reconsideration as follows: Cooperative Agreement between the Wyoming Department of Transportation and the City of Cheyenne for West Lincolnway Enhancements between Westland Road and Interstate 80 (2007-2010 1% Sales Tax, SLIB Funding, and ARRA Funding). Comments followed on the purpose of reconsideration as, since approval of the item at the May 11, 2009 meeting, WYDOT has advised they provided the City with an incorrect agreement and Exhibit B which contained an error in the amount of America Recovery and Reinvestment Act (ARRA federal economic stimulus) funds being provided resulting in a \$5,000 increase (from \$16,574.00 to \$21,574.00) to the City's contribution toward the project. Doug Vetter, City Engineer, concurred the cost to the city will be \$21,574.00 pursuant to limited federal ARRA funding allowed, and stated a minor change to right-of-way wording within the agreement is also included in the correction. Motion to reconsider carried. Voting "yes" – all members of the governing body present. Mr. Collins moved to approve the Cooperative Agreement, seconded by Mr. Spiker. Mr. Collins moved to amend by substitute agreement, including a substitute Exhibit B, seconded by Mr. Spiker. Dr. Rinne raised a point of order on whether a past ordinance before the governing body which pertained to reconsideration procedures had been approved. Upon request, City Clerk Carol Intlekofer advised the previous ordinance, which would have changed City Code regarding the reconsideration process to provide that items brought up and approved for reconsideration at the next regular meeting of the governing body would be postponed with the item referred back to a Council standing committee for review prior to action, had failed. She stated although the ordinance received an affirmative majority vote of those present, it failed as the required six votes to approve an ordinance on 3rd and final reading was not attained. Upon inquiry, Mr. Vetter provided information contained within the Cooperative Agreement involving the City's maintenance responsibilities. Comment was made in opposition to the process being followed to reconsider and amend previously approved agenda items without prior notification to the public. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case voting "no". Main motion as amended by substitute, including a substitute Exhibit B, carried. Voting "yes" – all members of the governing body present

with the exception of Ms. Case voting “no”. Upon request, Ms. Intlekofer provided information on votes cast on the ordinance that failed pursuant to Dr. Rinne’s point of order raised during discussion. (#5318)

Ms. Ash advised the City’s On-Track newsletter will be issued in this month’s water bills and requested the public contact her (e-mail) with their comments and to advise whether they find the information useful.

City Attorney Dan White requested the governing body meet in executive session to discuss matters involving pending litigation (Swan Ranch annexation and Kingston vs. the City and NextMedia) and another potential litigation matter. Mr. Collins moved to meet in executive session, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk’s Note: Executive session convened at 9:15 p.m.)

There being no further business to come before the governing body prior to executive session, the meeting was officially adjourned at 10:26 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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